

***Freddy Castro v. Higuera Motors, Inc., et al.*, 26CV-0161**

Hearing: Order to Show Cause Re Preliminary Injunction

Date: September 9, 2026

Freddy Castro filed this action in March 2026 against Higuera Motors, Inc., Adaauto Castro Larios, and Octavio Castro.¹ Freddy and Adaauto each own a 50% interest in Higuera Motors, Inc. which sells auto parts and performs automotive repairs. The complaint alleges Adaauto and Octavio have been withholding business, accounting, and tax records and have been improperly handling bank deposits and cash payments.

Freddy seeks a restraining order against Adaauto and Octavio enjoining them from (1) using any funds and/or assets of Higuera Motors, Inc.; (2) acting as an officer and/or director of Higuera Motors, Inc.; and (3) operating Higuera Motors, Inc. No new briefing has been submitted since the Court denied the request for a temporary restraining order in April 2026.

When ruling on a request for a preliminary injunction, the Court considers two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits; and (2) the relative balance of harms that is likely to result from the granting or denial of the interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554; *Robbins v. Superior Court* (1985) 38 Cal.3d 199, 206 [balance of harms and a “reasonable probability that the plaintiffs will prevail on the merits”].) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Butt v. State of California* (1992) 4 Cal.4th 668, 678 (*Butt*).)

“Case law has made it clear that mere monetary loss does not constitute irreparable harm in the contest of proposed injunctive relief unless there is some showing that one against whom injunctive relief is sought is insolvent or otherwise unable to respond in damages. [Citation.]” (*Friedman v. Friedman* (1993) 20 Cal.App.4th 876, 890.) In light of the fact that any harm may be remedied by monetary damages, Freddy would need to make a strong showing of a likelihood to prevail on the merits for purposes of supporting the broad preliminary injunction requested. He has not done so.

Having reviewed the briefing on file, the Court denies the request for a preliminary injunction.

ORDER

The request for a preliminary injunction is denied.

¹ Due to the shared Castro surname, the parties are referred to by their first names. No disrespect is intended.